

COMPULSORY
MANUMISSION

OR

AN EXAMINATION

OF

THE ACTUAL STATE

OF THE

THE WEST INDIA QUESTION

BY

ALEXANDER M'DONNELL, Esq.

COMPULSORY
MANUMISSION

OR

AN EXAMINATION

OF

THE ACTUAL STATE

OF THE

THE WEST INDIA QUESTION

BY

ALEXANDER M'DONNELL, Esq.

The Project Gutenberg eBook of Compulsory manumission

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Compulsory manumission
or, An examination of the actual state of the West India question

Author: Alexander McDonnell

Release date: February 19, 2024 [eBook #72991]

Language: English

Original publication: London: John Murray, 1827

Other information and formats: www.gutenberg.org/ebooks/72991

Credits: deaurider, Jamie Brydone-Jack and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK COMPULSORY
MANUMISSION ***

TRANSCRIBER'S NOTE

New original cover art included with this eBook is granted to the public domain.
Some minor changes to the text are noted at the end of the book.

COMPULSORY MANUMISSION.

COMPULSORY MANUMISSION;
OR
AN EXAMINATION
OF
THE ACTUAL STATE
OF THE
WEST INDIA QUESTION.

BY
ALEXANDER M'DONNELL, Esq.

LONDON:
JOHN MURRAY, ALBEMARLE-STREET.

MDCCCXXVII.

LONDON:
PRINTED BY WILLIAM CLOWES,
Stamford-Street.

ADVERTISEMENT.

It is fearful odds against a writer, when, at each stage of his task, he is liable to encounter prejudice as an upholder of a condition of society so repugnant to the feelings of Englishmen as that of slavery.

Greatly must those odds be increased, if a disposition be shown by Government, hitherto believed impartial, to array the weight of its authority against him.

But it is hoped that prejudice will not preclude inquiry. In the following pages it will be found, that in setting forth the actual state of the West India Question, the real and permanent welfare of the slaves occupies a conspicuous place.

In regard to the display of power, let us conclude, that when a measure can be demonstrated as positively bad, such disapprobation will be manifested by the independent and disinterested members of the legislature, as must exercise a salutary control over the counsels of ministers.

Under this impression, the following pages are respectfully submitted to the consideration of the members of both Houses of Parliament.

CONTENTS.

CHAPTER I.

	PAGE
<i>West India Party disingenuously treated</i>	<u>1</u>

CHAPTER II.

<i>Compulsory Manumission contrary to the Spirit of the Resolutions of Parliament</i>	<u>12</u>
---	---------------------------

CHAPTER III.

<i>Infringement of the Right of Property</i>	<u>22</u>
<i>Sect. 1.—The Conversion of good Servants into bad</i>	<u>22</u>
<i>Sect. 2.—Loss arising, if a number of effective Hands be taken from the Plantation</i>	<u>35</u>
<i>Sect. 3.—Plantations burdened with Expenses, while the gross Returns are diminished</i>	<u>44</u>
<i>Sect. 4.—Contrary to the Law of Mortgage</i>	<u>47</u>

CHAPTER IV.

<i>Injury to the Well-being of the Slaves</i>	<u>51</u>
<i>Sect. 1.—Counteracts the Incentives to Civilization</i>	<u>51</u>
<i>Sect. 2.—Debauchery and Crime encouraged</i>	<u>53</u>
<i>Sect. 3.—Virtuous Union of the Sexes impeded</i>	<u>56</u>
<i>Sect. 4.—Task-work prevented</i>	<u>57</u>
<i>Sect. 5.—Invidious Feelings excited by prompting to a general Rush for Freedom</i>	<u>60</u>

CHAPTER V.

<i>Safety of the Colonies endangered</i>	<u>64</u>
<i>Sect. 1.—Cultivation superseded</i>	<u>65</u>
<i>Sect. 2.—Rebellion instigated</i>	<u>66</u>

CHAPTER VI.

<i>No just Analogy in the Precedents adduced by Government</i>	<u>70</u>
<i>Sect. 1.—Trinidad</i>	<u>70</u>
<i>Sect. 2.—St. Lucie</i>	<u>73</u>
<i>Sect. 3.—Berbice</i>	<u>74</u>
<i>Sect. 4.—Cape of Good Hope</i>	<u>76</u>

CHAPTER VII.

<i>Responsibility attaching to Ministers if they enforce Compulsory Manumission</i>	<u>78</u>
---	---------------------------

COMPULSORY MANUMISSION.

CHAPTER I.

WEST INDIA PARTY DISINGENUOUSLY TREATED.

The West India Question is gradually narrowing to a point. There seems now to be little difference of opinion in regard to all safe and practicable measures tending to ameliorate the condition of the slaves, though the time and manner of their adoption may be dependent upon local considerations.

The question of emancipation, or that measure commonly designated Compulsory Manumission, alone remains at issue. The paramount importance of this clause, and the alarm felt in every West India colony at the threat of government to enforce its adoption, has caused the proceedings of the colonial department to be closely scrutinized, and it has in a variety of publications been charged with precipitation.

A pamphlet has lately appeared in vindication, under the title of "Remarks on an Address to the Members of the New Parliament, on the Proceedings of the Colonial Department with respect to the West India Question." It is avowedly "written by a Member of the late Parliament," and bears internal evidence of being the production of a gentleman connected with the Colonial Office.

This pamphlet calls for a reply, for two reasons: First, because the writer indulges in recrimination, and brings accusations against the West India body, which, if passed unnoticed, might produce a very erroneous impression on the minds of the moderate and disinterested portion of the legislature.

Secondly, because the writer discusses the compulsory manumission clause, and acquaints us with the nature and strength of the reasoning employed by government to justify the adoption of that measure.

The general tone of the publication will create much surprise, and in one respect it will be of service, in making known the true relations and influence of the contending parties. It has been asserted by the anti-colonial

advocates, and believed by a large portion of the community, that the West Indians possessed great influence with government, by means of which their cause was powerfully strengthened.

If the well-informed portion of the public could once have entertained this belief, their error must appear manifest on a perusal of the pamphlet in question. The writer expresses himself very unceremoniously towards those of the West India body, who were members of the last parliament; and his tone might lead one to conclude that he thinks them not worth conciliation. He seems to justify his asperity, by complaining that the colonial department is improperly singled out for attack in regard to those proceedings which the colonial interests do not approve. Now he must be aware that, constitutionally speaking, *responsibility* peculiarly attaches to that officer of the crown from whose department particular acts emanate. If important measures affecting the colonies are carried into effect, while there is reason to believe that the Secretary of State for that department is in possession of despatches, official reports, or other information showing their inexpediency, he will be chiefly looked to for the consequences; because it is conceived to be his immediate duty to give full explanation of the details, both to his colleagues and to parliament, and not to incur responsibility for measures he could not conscientiously approve. These are rather the sentiments of the British nation than of any individual party.

It cannot, therefore, be invidious to canvass freely the acts of that particular department. It is the obvious and the regular course where grievances are felt; and all our ideas of public principle warrant a belief, that when such grievances are fairly stated, every officer of the crown to whose department they referred, so far from feeling indignant at their exposition, would be anxious to extend his protection, in order to have them promptly redressed.

Thus viewing the case, our advocate of the colonial department cannot mistake the tendency or application of any of the comments contained in this publication; and he will be aware that a fair spirit of argument alone influences an examination of his positions, and of the judgment evinced in the manner and tone with which he has maintained them.

This writer endeavours to defend government, by charging the West Indians with inconsistency. This mode of argument, so frequently resorted

to in political warfare, in nine cases out of ten indicates a feeble cause. It can surely never be too late to correct a principle radically wrong.

But let us examine the charge.

It is contended, that compulsory manumission was clearly laid down in the proceedings of parliament in March, 1824; that it was heard by the West India members without opposition, which was an implied acquiescence; and that if they now turn round to oppose it, they must have been “the most ignorant, incautious, and imbecile body of men who ever were got together to represent an interest.”

It was well known to the writer of this sentence, that the West India members were unanimously opposed to compulsory manumission; and it may be added, that a charge, couched in such language as this, could not have been expected from such a quarter. It may be true, that the West India members did not appeal to the House so early or so often as the threatened injustice may have demanded. But is this difficult to account for? When West India members have come forward to state their case, have we not seen it retorted upon them in the widely-disseminated publications of the anti-colonial party, in terms of the utmost coarseness: “He is a slave-driver: what attention or confidence is due to the statement of such a character?”

The West India members are indeed in a dilemma: if they speak, they run the risk of being abused—if silent, they are to be held parties to all the acts of precipitation and folly which may take place in colonial government.

It would be unnecessary to touch upon this point, did not one remark pre-eminently suggest itself for grave consideration. Throughout this pamphlet we have the defending of parties, clashing of interests, and such terms; just as if the “Saints” and the West Indians were to fight the battle betwixt them, and whichever proved the most cunning, or the most persevering, would carry their point. And is this the language an apologist of government thinks it necessary to maintain? Can he have forgotten the grounds on which the West Indians were induced to commit their cause to the care of government? It was to stop useless or violent discussion. It proceeded from the principle, that if one party declaimed about alleged oppression of the negroes, and the other about their property, the safety of the colonies was the immediate province of ministers; that, as public servants, it was their

sacred duty to uphold all the possessions of the crown; and that, in watching over their welfare, they equally protected the property of the colonists.

Though this consideration influenced the conduct of many West India members, still it is very erroneous to assert, that no explicit opposition was made to compulsory manumission at the very outset. It is asserted that it passed without animadversion, "*except in a speech* of the present Lord Seaford (Mr. C. R. Ellis), made on the day on which Mr. Canning uttered his celebrated commentary on its enactments." One would think that dissent could not well be more clearly avowed than from the lips of the Chairman of the West India body. In point of fact, sufficient opposition, consistently with the respect which was shown to government, was evinced, to prove that the measure of compulsory manumission was from first to last peculiarly condemned by the colonial interests. When Mr. Canning first made known the intentions of government on this point, Lord Seaford explicitly denied being a party to them. When Mr. Brougham brought forward his last motion on the same subject, Lord Seaford again gave his reasons for resisting the measure. To those reasons, not a syllable in refutation was offered by Mr. Canning.

Besides these declarations of the chairman, every West India petition presented either to the king, to parliament, or to the Colonial office, explicitly set forth similar sentiments. The agents for the colonies, the merchants and mortgagees, early felt alarm; and in a petition from these last, presented on the 26th April, 1826, to the Lords by Lord Redesdale, and to the Commons by Mr. Baring, it was stated, "That until it shall be proved, that free negroes will work for hire, the process of compulsory emancipation cannot even be experimentally commenced, upon a West India estate, with justice to the various parties holding legal claims upon the property."

Surely nothing could be more explicit than this, to convey the opinion of the parties most deeply interested in the question. But the hardy assertion of the writer we have quoted, calls for still further explanation. This writer must know, that in every interview or communication with the Colonial office, those of the West India body, to whose opinions most weight was likely to be attached, were loud and strenuous in their entreaties for forbearance. They stated, that the government had not given sufficient examination to the case; that they were ignorant of many important local

circumstances that those ought all first to be carefully and fully investigated before a measure of vital importance was enforced; and that, in short, the government were already getting into difficulties, and if they proceeded further they would get more deeply involved, and might find it unpleasant, if not impossible, to extricate themselves.

To attempt, therefore, to criminate the West India party, if opposition be now manifested, is not consistent with that impartiality which we have a right to expect from a member of the legislature; still less does it indicate the manly candour presumed to influence the conduct of an officer of His Majesty's government.

It is argued, again, that a general declaration of dissent was not sufficient. The Order in Council for Trinidad contained four clauses, showing how compulsory manumission was to be carried into execution. That Order was uniformly described as the model for the rest of the colonies; and it was the duty of the West India party, in their subsequent proceedings, to move for the rescission of those clauses, if they entertained objections to them as a model.

Two reasons may be assigned why the colonists deemed it unnecessary to express their disapproval of the Trinidad order. First, the tenure on which property was held in the British colonies differed from that of the Spanish colony of Trinidad. Secondly, it was notorious, that various portions of that order had to be repeatedly sent home for explanation and remodelling. Was there, then, fair reason to believe, that every clause contained in the original order would be enforced upon the other colonies, while it was yet doubtful if they would be finally confirmed even in the colony for which the order had been originally framed?

Time was afforded the government for reflection. It was presumed, that they would learn, by experience, the difficulty occasioned by legislating precipitately for distant settlements. This line of conduct was dictated by respect for the government. Had the West India body in England come forward in a bolder manner than they had done to resist the determination avowed by the Colonial Secretary of State, how would they have been met? They would have been told by the very same parties who are now wilfully misinterpreting their quiescence—"You are exciting the colonial assemblies

to needless opposition—your violence will engender contumacy in its worst form—remain silent till you know what is their decision.”

Such reflections undoubtedly did actuate them; but now, when opposition to compulsory manumission is known to be unanimous throughout the colonies which possess legislatures, the West India body in England, since repeated warnings and admonitions have been vain, do but consistently follow them up by appealing in a determined manner to parliament, and to the British nation, against the threatened intentions of government to enforce its enactment.

All the apologists of the measure seem, in their very tone, to be aware of the great degree of responsibility to be incurred in carrying it into effect; and hence there is a laboured attempt to show, that it is strictly conformable with the first proceedings of parliament, and with the resolutions of 1823. The West Indians are told, “in addition to your ignorance and imbecility, there will be the charge of shameful inconsistency to bring against you, if you now oppose our measures. You concurred unanimously in Mr. Canning’s resolutions; compulsory manumission is distinctly contemplated by those resolutions; and can you now propose to retract the assent given to them by your former votes.”

The West India members had little right to expect that such an accusation would ever be brought against them. In every stage of the proceedings, the whisper was incessantly reiterated in the ear of His Majesty’s ministers—“Adhere honestly to your own resolutions—for the sake of justice we call upon you, not to court a vulgar and transient popularity at our expense!”

And why was it that the resolutions were thus implicitly relied on? Not from any opinion that declarations of separate branches of the legislature could affect the rights of individuals resting on the statute-laws of the realm, but, because the parliamentary resolution contained a principle of cautious and practical legislation, and authorised the belief that, at each stage of procedure, careful examination and scrutiny would precede the adoption of measures which could be alleged, by any party concerned, to infringe their rights or interests.

When, subsequently, statements were made in the House of Commons, that government was departing from this principle, in enforcing compulsory

manumission, neither Mr. Canning, nor Mr. Wilmot Horton, thought proper openly to attempt an explicit refutation.

What is the commentary? Matters are now becoming more critical, and the Executive resort to the plea of acting only upon the declared will of the legislature in their justification. Let us give them every advantage. Let us discuss the propriety of compulsory manumission, as it agrees with the resolutions of parliament; and if we succeed in our endeavours, we shall command the more attention, from meeting our antagonists on the ground they have themselves selected.

CHAPTER II.

COMPULSORY MANUMISSION CONTRARY TO THE SPIRIT OF THE RESOLUTIONS OF PARLIAMENT.

The first of these often-quoted Resolutions declares, “That it is expedient to adopt effectual and decisive measures for AMELIORATING the condition of the slave population in His Majesty’s colonies.”

It was to facilitate the accomplishment of this object of amelioration *alone*, that many respectable West India planters in England gave their sanction to the resolution; and it is proper here to state, that their interference and acquiescence was by no means of that sweeping character claimed for it by Earl Bathurst in his despatches to the colonies. They explicitly declared, that in none of their proceedings had they the intention of imposing restraints or difficulties upon the colonial legislatures.

The Second Resolution is, “That through a determined and persevering, but at the same time judicious and temperate, enforcement of such measures, this House looks forward to a progressive improvement in the character of the slave population, such as may PREPARE them for a participation in those civil rights and privileges which are enjoyed by other classes of His Majesty’s subjects.”

This resolution is the one which the writer, who has undertaken to illustrate the views of government, quotes as decisive of the case. He says, the object was “‘to adopt,’—aye, not only ‘to adopt,’ but ‘enforce’ such measures ‘in a determined and persevering, though at the same time judicious and temperate manner,’ as would effect,—what purpose?—the mitigation of the evils of slavery?—as would remove the odious imputation of inhumanity adhering to the West Indian planters, so generally prevalent at that time throughout England, whether true or false? *No: to enforce such measures as might ‘prepare them for a participation in those civil rights and privileges which are enjoyed by other classes of His Majesty’s subjects.’*”

The writer here deems contingent emancipation to be broadly and unequivocally provided, and in a very triumphant tone, he adds, “What! was the intellect of the West Indian members of the House of Commons who were present on that day, so obtuse, that they could not understand the meaning of those words?”

Perhaps not, to answer the ideas of this writer; but it is to be hoped that the case will be different with the legislature at large. It is surely quite apparent, that if by this Resolution any legislative measure for effecting emancipation had been contemplated, the term should be, “*ADMIT* them to a participation in civil rights.”

The colonial advocate argues throughout upon this most erroneous assumption. The word “prepare” cannot here admit of two meanings; it is precise, definite, and strictly accordant with the desideratum avowed in the first resolution. It was not possible to convey in a more explicit manner the obvious fact, that the slaves *are not as yet in a state to receive freedom*. By “preparing them,” it was understood that they had a probation to go through; that their condition had to be materially changed and improved; that, in fine, the fruits of amelioration must have been made visible before further measures were adopted. May we not ask whether this Second Resolution be not as consistently applicable to the progress which *voluntary* manumissions are making towards an extinction of slavery, as to any measure of compulsory manumission? In the one case, as in the other, is it not expedient to adopt such measures of amelioration, as may effect a progressive improvement in the character of the slave population, and *PREPARE* them for a participation in those civil rights and privileges which are enjoyed by other classes of His Majesty’s subjects?

What, let us demand, was the object of all the powerful and extensive means taken to secure moral and religious instruction—of the appointment of the bishops and regular clergy? What was it but to enable the negroes to appreciate correctly the possession of civil privileges, in order that hereafter we might have civilized beings, and not barbarians, living in freedom in our colonies?

But if there could be the least ground for misinterpretation in the Second, it must be speedily removed by attending to the Third Resolution: “That this House is anxious for the accomplishment of this purpose at the earliest

period that shall be compatible with the well-being of the slaves themselves, with the safety of the colonies, and with a fair and equitable consideration of the interests of private property.”

Here are laid down certain conditions which must be complied with in whatever new measures are introduced. These conditions constitute the strong reliance of the colonists for protection, since the letter of them definitely confirms what appears to be the spirit of the two preceding Resolutions.

It may be proper to add that, besides the direct declaration of these Resolutions, we have them corroborated by the collateral authority of ministers. In the debate in 1823, Mr. Canning not only made no sort of allusion to compulsory manumission, but that project does not appear to have been even thought of. The mode of emancipation contended for by the anti-colonial party had for its object the freedom of the rising generation of negroes; but Mr. Canning both resisted this, and appeared anxious to check any notion which might be entertained, that plans for emancipation of any kind were then in contemplation.

As a further and conclusive proof that compulsory manumission was not, even by ministers themselves, deemed to be implied in the Resolutions proposed by Mr. Canning, but that it was an after-thought of their own, we have the direct and decisive testimony of Lord Bathurst.

In his Lordship’s circular despatch to the Governors of Colonies having local legislatures, dated 9th July, 1823, and consequently near two months after these Resolutions were passed, and when it is presumed that the executive government had determined on the details of such measures as were to be adopted in furtherance of those Resolutions, Lord Bathurst gives a comprehensive sketch of the various amendments required in the colonial laws.

“The next subject,” says his Lordship, “to which I must draw your attention, is the manumission of slaves.”

After expressing his satisfaction, that the practice of impeding manumission by the exaction of a heavy fine or tax has been discontinued, his Lordship anticipates a further facilitation to manumissions, by the concurrence of each colonial legislature in the final repeal of all such

charges, including all official fees. His Lordship thus appears to consider the *expense* of obtaining emancipation, as the chief obstacle which it was incumbent upon the colonial legislatures to remove.

He then proceeds to specify all the remaining obstacles which he thinks ought to be removed.

“The first obstacle to manumission arises from the apprehension of this being resorted to by the owner for the purpose of relieving himself from the burden of maintaining infirm or aged slaves.—A second obstacle to manumission seems to arise from a presumed legal difficulty, in regard to the incapability of a slave to make contracts.—A third, and much more serious obstacle arises out of the legal limitations to property in slaves; as in cases of entail, family-settlement, or mortgage.—A difficulty analogous to this arises out of doubtful or disputable titles.”

How were these difficulties to be obviated? By the *compulsory* enactments of the Trinidad order in council? No such thing. They were not even contemplated.

“To remove,” says his Lordship, “all the preceding obstacles to manumission, you will therefore propose to the legislature of your colony to pass a law to the following effect:—Permanent commissioners should be appointed, who (on application being made by, or on behalf of, any slave, *with his master’s consent*) should ascertain the names,” &c. &c. Parl. Pap. Sess. 1824. p. 10.

This passage attracted much attention in the colonies. The Court of Policy in Demerara, in stating, at a subsequent period, that it could not enact compulsory manumission, since “It had not the right to invade the property of its fellow-colonists, by admitting that they can in any manner be deprived of it contrary to the laws by which it is secured to them,” remarked —“This principle is laid down in Earl Bathurst’s letter of the 9th July, 1823, wherein *the consent of the master* is distinctly coupled with the application to be made by or on the behalf of a slave for freedom.”

This reply of the court of policy of Demerara is copied into a pamphlet, entitled, “The West India Question practically considered,” with which performance the Colonial Department may possibly be acquainted. It has

the important words, “consent of the master,” printed as above in italics, as if to remind the government more forcibly of its own previous statement.

After this exposition, may we not venture to ask, who most deserves the reprobation of disinterested members of the legislature? The ministerial advocate, who asserts that compulsory manumission was avowed from the outset, or the West Indian who can produce Lord Bathurst’s own words to prove the contrary?

It must have been between July, 1823, and March, 1824, that the innovation was devised. But even at the latter period its bearings were not developed.

Few members of the House of Commons can have forgotten Mr. Canning’s luminous oration on this occasion, when he described the evil consequences of precipitation, and the difficulties which opposed themselves to the termination of a state like that of slavery.

It is not a little singular, that the same passage which the apologist of the Colonial office quotes from this speech as proving that emancipation was then contemplated, may, with far more effect, be turned against him. Adverting to the other measures of amelioration, Mr. Canning, on the 16th March, 1824, observed: “By this process, and by these degrees, may the slave be gradually fitted for the last grand consummation of benefit, the power of acquiring his freedom.”

The term here used, *FITTED FOR*, is in strict consonance with the word *PREPARE*, employed by Mr. Canning in the outset; and though he now, for the first time, notices Compulsory Manumission, he passes it over in a very cursory manner, either as if anxious to avoid discussion, or desirous of concealing its importance. An ordinary observer, on reading the more recent despatches sent out to the colonies, in which the views of government were stated, would imagine that, in place of the guarded expressions originally used, terms impelling to quicker and more extensive proceedings had since been substituted.

Consistency is a delicate word to political ears. Lest any misunderstanding should arise, or any member of the legislature should conceive himself shackled by former votes, it was necessary to explain fully to which side the charge attaches of having abandoned former principles.

Having therefore removed that injurious bias which it appears to be the object of the advocate of the Colonial Department to raise against the West Indians, on the ground of inconsistency, it now becomes desirable to discuss the principle of compulsory manumission on its own merits.

It will be found that the opposition of the West Indians is not directed against an imaginary evil; that opposition now is very different from those minor objections locally entertained against particular plans of amelioration; and that, above all, if government, with a view of courting popular favour, have innovated upon their original understanding with the West Indian party, they have neither chosen the most benevolent nor the wisest mode to accomplish their own end of terminating slavery.

We propose to pursue the examination upon the grounds marked out by the Parliamentary Resolutions already quoted, in the order in which the importance of the several heads may be presumed to receive attention from a legislative assembly.

1. Justice, as regards the right of property.
2. Humanity, as regards the well-being of the negroes.
3. Sound Policy, as regards the safety of the Colonies.

CHAPTER III.

INFRINGEMENT OF THE RIGHT OF PROPERTY.

Loss of property may be brought upon the Proprietor of a West India estate in two ways:

First, By introducing a new tone of feeling among the Negroes, and converting good servants into bad.

Secondly, By abstracting such a number of efficient hands from an estate, that the remainder are incompetent to carry on its cultivation in an effective manner, or to render its fixed capital productive.

Section 1.

THE CONVERSION OF GOOD SERVANTS INTO BAD.

If we imagine an estate, with a given number of negroes, to produce three hundred hogsheads of sugar a year, few will be inclined to doubt the disposition of the proprietor to increase its production, if practicable, to three hundred and fifty or four hundred. What are the means, then, to effect this object, without increasing the number of labourers? The proprietor finds himself possessed of a number of people, the development of whose full capability for labour depends upon their treatment. If they are prompted to work with willingness and satisfaction, skill in the various branches of work to be performed speedily displays itself. If thus some of the slaves can be converted from ordinary labourers into good tradesmen, and if those in the field can be taught to use their utmost dexterity in field-cultivation, a much more profitable division of labour than hitherto will be accomplished. Through this improvement there is less expense in superintendence, there is more work procured from the steady government of the negroes without rigorous coercion, and the cultivation is extended generally, from a better and more skilful distribution of the various employments on the estate.

To accomplish this condition of things, the proprietor is induced to grant to the slaves every reasonable indulgence and benefit. He uses a discriminating power, bestowing reward upon the well-deserving, and withholding it from the vicious; and thus holds up a double example to the rest.

On the other hand, the slaves, finding that the master deals out his favour with strict impartiality, are cheered under their labour by the assurance that their exertions will be appreciated, and emulate each other in assiduity and good conduct.

It is perfectly evident, therefore, that it is the first interest of the master to have the minds of his people easy and contented; and that whatever tends to destroy their tranquillity occasions to him inevitable loss of property. He will not then be able to avail himself of that skill and willingness to work above described, and instead of having his three hundred hogsheads increased to four, which he might otherwise have expected from the greater diffusion of intelligence among the rising generation, he will have his produce diminished to two hundred, and rendered still less and less, as discontent spreads and becomes more deeply rooted among his people.

It is one of the worst features of compulsory manumission, that it must inspire this discontent. Is it surprising, therefore, that it should excite such strenuous opposition? The colonists know well, that there is not an instance in our colonies of free negroes working steadily in the field for hire; and that if their people be compulsorily freed, the cultivation of their estates must be superseded. There will no longer be a motive for the master, as at present, to bestow benefits upon the slave; on the contrary, every indulgence granted would only tend to swell that sum which is ultimately to be employed to the master's injury. The negroes will learn, that benefits must cease to flow to them from their masters: hence the interests of the two, instead of being reciprocal as hitherto, become directly opposed to each other.

It is beyond any effort or precaution of the master, when he can procure no other labourers, to retrieve the injury he thus sustains. His property is placed at the mercy of his own servants. In the practical operation of the measure, his best and most serviceable people will become the first discontented. They will, as a natural result, be directly induced to suppress

their skill, zeal, and willingness to work, or in other ways depreciate their personal value.

When slaves have the power to enforce their freedom from their owners by such a process as that of appraisement, those who are of bad character are comparatively rewarded, while those who are really meritorious are punished.

Thus, on the same estate, a disorderly and unprofitable slave may be readily parted with by his master for fifty pounds, whilst another, a steady, intelligent, and assiduous slave, might, for these good qualities, be worth three hundred. Yet, disproportionate as are the characters and consequent value of the two, the desire for freedom will operate with both; but how strikingly unequal are the terms upon which they are to obtain the same reward. To the one who is profligate and undeserving the obstacle is trivial. On the contrary, the meritorious slave, applying to his master to know the amount of his ransom, finds it magnified above that of his fellow sixfold. He cannot fail to be struck with the largeness of the amount, and the time requisite to raise it. Such an obvious departure from the principles of common equity, as this, must engender discontent, and prompt the meritorious individual to seek for the cause of this difference in value. He will conceive it gross injustice, that a bad character, who has always disregarded his master's interests, should quickly get his freedom, whilst he himself, who has constantly studied those interests, must wait for it through a course of years lengthened in exact proportion to the value of his services.

When the measure fairly begins to work, the grievance is greatly aggravated.

It is intended, that a proportion of the capital sunk in the lands and buildings of each estate shall be added to the value of each slave.

Earl Bathurst, in his despatch to Sir Benjamin D'Urban, of the 25th February, 1826, says:—

“If, in the process of time, it should be unfortunately found, that the slaves thus manumitted altogether abandon their owners, and refuse to work as free persons, the owner not having the means, by reason of the Abolition Act, to supply the loss of his slaves, and not being able to engage any free labourer for his sugar-plantations, the price which must then be assigned to

the loss of each slave must have a direct reference to that state in which the plantation will be placed by the progressive reduction of the means of cultivating it.”

Under this plan it will be the *deserving* slaves who will have to pay for the lands and buildings.

The higher the personal value of the slave, the greater is his *relative* utility to the plantation, and the greater must be the recompense awarded to the proprietor for superseded cultivation. The relative utility of a negro of bad character may thus be estimated at not more than ten pounds, while that of a trustworthy individual may rise so high as one hundred and fifty. In both these cases, the respective sums have to be added to the slave’s personal value, before his master can be said to have received an equivalent for his liberation. If the personal value of a slave of bad character be estimated at 50*l.*, the compensation of 10*l.* for his *relative* utility to the plantation being added, will make a sum of 60*l.* only, as the price of his manumission. If the personal value of the skilful and zealous slave be estimated at 300*l.*, the equivalent of 150*l.* for his *relative* utility to the plantation being added, will require as much as 450*l.* to be raised for the purchase of his manumission.

Here the impediment is increased from six to eight fold.

But there is yet further injustice. Not only are different descriptions of cultivation carried on in the colonies, but the same species of cultivation may greatly vary on estates contiguous to each other, from difference of soil, or other local circumstances. Accordingly as those circumstances are more or less favourable, in a corresponding proportion will be the value of the slave, and the appraisers will be called upon to adjust this value, thus varying in different districts of the same colony.

Suppose the fixed capital sunk on a coffee or cotton plantation to be 5,000*l.*, and that sunk on an adjoining sugar-plantation to be 25,000*l.*, while each possesses the same number of negroes. One of these from each plantation, of precisely similar capability and character, demands his freedom. The first finds there is to be an addition of but 10*l.* to his price; not from inferiority of character or skill, but from the accidental circumstance of his living on a plantation where the amount of fixed capital is small. The man from the latter, the sugar-estate, finds it, as before stated, so high as

150l., making the difficulty of obtaining freedom perhaps double, as compared with his companion and equal. The same argument would apply even to two estates, which both produced sugar, provided the buildings and machinery on the one were better and more complete than that of the other, or the land more productive.

Thus, the more extensively that machinery has been introduced to facilitate and lighten labour, the more will it be to the prejudice of the slaves. When the supply of labourers is short, to introduce the most advanced and highest description of machinery is all-important and desirable, and the main step to advance a colony to prosperity. But in the new measure proposed, this is checked at once, because no proprietor would think of an outlay, when it could be withdrawn in no other way than by pittances wrung from his best slaves, in their eagerness for freedom.

In contemplating these several facts, can there be a moment's hesitation in regard to the discontent created? Let us imagine a serviceable man on a sugar-plantation applying for his freedom. He has formed in his own mind an estimate of what he ought to pay, and he betakes himself to the appraiser, with the money in his hand. To his astonishment he is asked a sum far beyond his means of payment; he cannot comprehend the cause; and no alternative remains to him but to go back and brood over his disappointment. When he finds his long-cherished hopes utterly frustrated; when, too, he perceives a worthless fellow, distinguished only for idleness and debauchery, now sporting and enjoying himself at liberty all day long, perhaps laughing at the deserving individual who remains in servitude; when he sees his acquaintance on some neighbouring plantation attain his freedom, merely from his chancing to live on an estate where less machinery was used, will he, in common reason, return to his duty a contented man? Is he not goaded on to renounce his better qualities, when he is thus made to feel, that they are insuperable impediments to the attainment of his natural wishes? He discovers that discontent is his surest remedy; that he has only to display the sullenness which he actually feels; that, in one word, he has but to become a bad subject, in order to obtain liberty the more speedily.

Can then the sturdiest champions of compulsory manumission attempt to maintain, that if this man was worth a dollar a day before this occurrence, he will be worth as much still; and if the return from his labour be reduced

one-half or two-thirds, will any man contend that a direct violation of property has not been inflicted?

We have confined our attention, hitherto, to the most deserving slaves, because their welfare should be chiefly consulted in every new measure. But with the gang at large the injurious tendency is scarcely less striking. Besides a systematic practice of repressing dexterity and usefulness, the slave may even resort to bodily disablement, in order that his price may be lowered to his means. Such practices are known to exist at present, where there is no higher temptation than that of idling in the sick-house; and there could therefore be little expectation, that the practice would not increase under so much more powerful an inducement. It is vain to argue, that there are reasons, such as the fear of correction from his master or the magistrate, of sufficient weight to deter him from this course—the object for which he strives is perpetually in his view, and will inspire him to brave in its pursuit any present punishment, well knowing that the owner's patience must at length be exhausted.

With the negroes generally, there is also a direct encouragement to theft, since, under the peculiar circumstances of West India cultivation, the master's property is, necessarily, much exposed, and liable to be stolen by his slaves. Even at present, the quantity stolen annually is ascertained to be very great. Crime usually increases in proportion to temptation; and, under the proposed enactment, the slave must become habituated to fraudulent propensities, and all his ingenuity stimulated to the commission of secret theft. Thus is caused loss of property, both directly and indirectly: directly, by the sum taken from the proprietor in the property stolen; indirectly, by obstructing the steady government of the plantation, and occasioning unavoidable loss of labour in the services of the slave.

These are vital evils; and can any attempt be made to correct them, particularly the most important one relating to self-depreciation?

Lord Bathurst, in his despatch of the 25th February, 1826, acknowledges, that great mischief would ensue, if manumission were obtained by other means than those of individual and habitual industry; and, in alluding to the possibility of a slave's purchase-money being improperly obtained, his Lordship observes—

“For the sake of the community, indeed, such indiscriminate manumissions ought to be prevented; for, undoubtedly, if the purchase-money were obtained from any fund which may be formed for the liberation of slaves, there would be no test of previous habits of industry, of which there is presumptive evidence where the money is procured by the honest earnings of the slave. To supply this defect it may be provided, that in such cases a certificate of good conduct for five years should be required of the Protector of slaves, before the manumission should be completed.”

It is not difficult to perceive, that this idea of a certificate is perfectly nugatory. Who is to give it? The Protector, it seems. How is it possible for the Protector to judge of the private character of the thousands under his charge? Mr. President Wray, sitting in the Court of Policy, in Demerara, admitted, “that in a population of more than 70,000 negroes, the protector could not be supposed to be acquainted with individual characters.” To the proposed amendment, that the existence of habits of industry and good conduct should be shown before the same tribunal which inquired into the manner in which the property was obtained, it was urged, that no such tribunal would have better information than the protector himself; and any certificate of good behaviour coming from incompetent judges, must prove altogether futile as regards protection to the proprietor.

If the framers of the measure had interrogated managers or overseers as to the length of time and the close attention it requires to understand the character of the negroes, even of a moderately-sized gang, they would have little thought of expecting a single public officer to remedy the difficulty.

But if the protectors were multiplied from one to a thousand, and did nothing else but watch over the individual character of the slaves, the remedy must be fallacious. On the broad principle of the measure itself, no system of appraisement, no reference to previous character, can meet the artifices which a slave may employ to depreciate his value; because many of such artifices, depending on the suppression of skill or zeal, being of a negative character, defy detection; and, even were they detected, detriment to the proprietor’s interests must ensue, since a willing has been changed into a discontented labourer.

Upon the rising generation, too, of the negroes, the operation of the same baneful policy of self-deterioration must increase. The whole of the

youthful class, whose faculties are just dawning, will be taught to suppress everything like acuteness, and to stifle every indication of future habits of industry.

Compulsory manumission, therefore, contains the worst principle of evil, a principle of growth. Each succeeding year will make more evident to the negroes the means with which they have been invested for self-depreciation; and each additional instance of its successful adoption by their fellows encourage numbers to resort to the same pernicious artifices.

How miserable, then, is the expedient of *partially* questioning certain individuals in the colonies, who, thus interrogated, may pronounce that in the *present* condition of the slaves the measure would be inoperative, while the same persons, if questioned with a view to the *future* effects of the measure after ten or fifteen years of its adoption, would predict a widely different result!

The writer of the “Remarks” seems unwilling to contemplate the future, and condemns prospective arguments as speculative and merely matter of opinion. But if the negro prefer a state of idleness to one of constrained exertion, it follows that he must earnestly desire to obtain his freedom. If he have repugnance to labour, he will seek his freedom by those means which are easiest. If he possess common reason, he must perceive that the easiest of all methods lies in self-depreciation.

Would it not, then, be contrary to all principles of equity or sound legislation, to subject what is thus a self-evident proposition to the test of experiment, since, ere the result of that experiment could be ascertained, irreparable injury must have been produced?

In reality, a part only of the subject has been treated of in Lord Bathurst’s despatch, and in the “Remarks,” inasmuch as they regard only those negroes who may be freed under the operation of the measure, and overlook those who, from inability to procure their freedom, still remain on the plantation.

But it has been shown, that greater deterioration of property may occur from an improper feeling excited among the negroes who remain, than from the more direct loss of labour occasioned by the abstraction of those who become free.

Section 2.

LOSS ARISING, IF A NUMBER OF EFFECTIVE HANDS BE TAKEN FROM THE
PLANTATION.

The capital sunk in land, buildings and machinery is known to be very extensive in West India plantations.

We have now to inquire whether, under the mode proposed, the proprietor will receive fair indemnification for this capital, from the slaves who may obtain their freedom. It is conceived that, in every point of view, loss is occasioned; and that while the plan of increasing the price of the slave according to his relative utility to the estate is calculated to engender the greatest discontent generally, it at the same time affords inadequate compensation to the proprietor, in regard to those who may purchase their manumission.

Lord Bathurst and the writer of the “Remarks” consider the means of fair compensation for the fixed capital to be secured, as appears in the following extract from his Lordship’s despatch:—

“If by these regulations an adequate compensation be not secured to the owner, it must either be because the persons who are authorised to decide upon the amount are not likely to be fit or fair arbitrators, or because there are restrictions which will prevent the arbitrators from the free exercise of their judgment. Now it must be admitted nothing can be fairer than the proposed selection of arbitrators in the Trinidad Order: viz., that in the event of the owner and the slave not agreeing on the price of the slave’s manumission, the owner should appoint one, the protector of slaves another, and that an umpire should be appointed by the chief judge. It is clear that an arbitration on such principle would protect the interests of the owner, and if there were any objection it would be that the bias was in his favour. As to

restrictions or limitations, there are none to obstruct the free exercise of their judgment.”

To this it may, in the first place, be replied, that the principle of appraisement in its practical operation supposes the price of slaves to continue to be regulated in the West India colonies by competition in the market, like commodities in commerce.

Before we go further, then, let us examine how West India property stands at present.

The following are the Gazette average prices of sugar for the last seven years: viz.,

1820	35s. 0d.
1821	31 0
1822	29 4½
1823	34 6
1824	30 11½
1825	38 7¼
1826	35 6½

It might be presumed, that the amount of capital which an individual would be willing to vest in the purchase of a property would be proportioned to its net returns. But it can be proved, that in 1819, 65,000*l.* sterling was offered for a sugar-estate in Jamaica, and refused, as below its estimated value. About that period it was considered, that the increasing consumption of sugar, while the means of production were limited, presented a very favourable prospect for the West India planter. Accordingly, in the year 1820, 70,000*l.* sterling was offered for the abovementioned estate, and also refused for the same reason. But when the proceedings in this country in 1823 and 1824 began to operate, a mighty change took place. It can be shown that distrust gradually arose, and as the proceedings became more and more critical, in the same proportion and as quickly did the value of property progressively decline. The demands of alarmed creditors from all quarters fell on the planters; they became embarrassed; and the very same property for which, in 1820, 70,000*l.* sterling had been refused, when again put up for sale in 1826, found no real bidding higher than 32,000*l.* currency, being less than 23,000*l.* sterling.

Strong as this instance appears to be, others equally forcible could be adduced, of the ruinous deterioration of West India property from the like cause; and they exemplify the nature of those boons which the writer of the “Remarks” affirms to have been accorded to the colonists, and “for which they should feel grateful.”

If a decline in the value of the capital has ensued, whilst the price of the produce has remained nearly the same, it is proof positive that the depreciation of West India property is not attributable to circumstances purely mercantile, but that it is owing to the proceedings of the British legislature.

It is essential to keep this circumstance in mind, and to examine the mode of appraisement prospectively, when the principle of supply and demand no longer exists, as regards the objects to be appraised.

It is apparent, that to allow of a properly-constituted market-price, there must be purchasers; but if the principle of compulsory manumission be admitted, after what has been just stated relative to the deterioration in the value of property already produced, will any purchaser of slaves be found? Under the manifold evils detailed in the preceding section, no capitalist henceforward would think of making investments upon West India securities, and all transfer of property would be at an end.

The appraisers are employed to fix a price between conflicting representations of master and slave. But can a criterion for equitable adjustment be formed? The slave himself is the only purchaser who appears in the market, and in this condition of things any mode of appraisement must be unjust and injurious to the capitalist which assumes that colonial cultivation will continue unchanged, in the event of the proposed measure being carried into effect; and which does not take into the account the aversion which every capitalist will then feel to making a precarious investment dependent upon the uncertain services of the slaves.

This is founded upon the most simple principle. If a decrease in the value of capital have already occurred beyond what is attributable to circumstances purely mercantile, and is solely occasioned by the threatened measures of Government, it is a fair inference that a further decrease would ensue if such threatened measures were put into execution; and the effects of that opinion prevailing throughout the colonies, must render the chance

of fully withdrawing the fixed capital more and more precarious, as the evils of the measure became more widely developed.

Let us suppose a sugar-plantation, with two hundred negroes, worth 40,000*l.*; one-half sunk in lands and buildings, the other half the value of the slaves. Accordingly as the negroes progressively free themselves, the 20,000*l.* sunk in lands and buildings has to be apportioned among them, and added to the price of their manumission. Now it must be recollected, that *the whole* of the two hundred negroes are requisite to carry on profitable cultivation. The land and buildings cannot be disposed of, or circumscribed to suit a more limited business, as would be the case with premises in this country when a manufacturer reduced the number of his workmen.

After a number of men, then, are freed, the proprietor is left with a great concern upon his hands without people to carry it on. To be fully remunerated for the property sunk in that concern, the people remaining would have to pay, as he gradually becomes more and more short of hands, a prodigious sum for their freedom. Is it possible, from what has been stated, that he could receive full indemnification? Let it be recollected, that it will soon be, not a quota, but the *entire* of the fixed capital, which the efficient negroes, applying for freedom, will have to pay to indemnify their masters,—and in actual practice can this be done?

The writer of the “Remarks” illustrates the case by comparing a sugar-estate to a mill with a number of buckets! The reader, it is presumed, will be tempted to smile at the idea of considering the negroes as mere passive machines, devoid of those feelings, passions, and intelligence, which it is their master’s chief solicitude to call into existence.

But, to pass over the narrow and partial view of the subject here displayed, even were we to indulge the writer in his singular mode of illustration, it fails to establish his object. He says, if twenty buckets are attached to a wheel, and four be removed, the proprietor will be entitled to be remunerated for whatever loss of work this removal occasioned; and if the work turned off were diminished, from incompetency of power in the wheel, not only in the proportion of twenty to sixteen, being one-fifth, but in the proportion of two-fifths, then would the proprietor be entitled to receive, as equitable compensation, two-fifths of the value in place of one.

Now it is important to reflect, that if four buckets be taken away from the wheel, its motion may not only be diminished in a greater ratio than two-fifths, but it may be *stopped altogether*.

This is the proper application of such an illustration to the circumstances of a sugar-estate. If forty efficient negroes be removed out of two hundred, being the same proportion as in the assumed case of the buckets, will any person, acquainted with the colonies, maintain that cultivation could continue? An estate which had produced two hundred hogsheads of sugar would not merely be reduced two-fifths of that amount, that is to say, to one hundred and twenty hogsheads, but it would be altogether abandoned, because its returns would not cover its expenses.

The author of the bucket-illustration must be sensible of its fallacy, if he reflect that at some one point, the wheel, from its diminution of buckets, must stop.

The question is, as regards the cultivation of sugar, will this point soon be reached? Little is required to be said on this head, if the proprietors are prepared to establish the fact, that even at present they can scarcely spare one man.

Lord Bathurst acknowledges, indeed, the ultimate improbability that the slaves could of themselves indemnify their master for the entire capital he has sunk; and his Lordship says, when the price of manumission rises from 100 to 500*l.*, then it will be time for the nation to come forward. A most consolatory prospect! And what are the proprietors to do *before the nation does come forward*? When the discussion is beginning, and before the public are disposed to put their hands into their pockets, the proprietors buildings, machinery, roads, dams, are going into dilapidation, and he is a ruined man.

When we prove injury in the principle, it is scarcely necessary to descend to discuss the practice. Many colonists view with alarm the great power given to the Protector, and other officers of government. But let us pass over details. It is only necessary to reflect upon what the appraiser has to do, to perceive that the mode of working must be as bad as the design, and that the whole process must be vague and mere guess-work. Even admitting the very doubtful proposition, that impartial arbitrators could be selected, numerous peculiarities may exist to obstruct the formation of a sound

judgment in regard to the value of a part of the planter's stock, in consequence of the manner in which the whole is rendered profitable.

It is to repeat the opinion of every intelligent person recently returned from the colonies, to declare, that it is perfectly impossible for any appraiser, no matter how intelligent, experienced, or impartial, correctly to estimate the value of a slave, in order to award compensation in the manner described by Lord Bathurst.

Section 3.

PLANTATIONS BURDENED WITH EXPENSES, WHILE THE GROSS RETURNS
ARE DIMINISHED.

Having shown, in the preceding section, that the fixed capital of an estate cannot be removed, we have now to show that the necessary expenses of carrying on its cultivation cannot be diminished.

Each proprietor is by law obliged to maintain the aged, the infirm, and the helpless, upon his estate. This duty he performs with the utmost cheerfulness. He can hold out to his able negroes no stronger incentive to good conduct than the assurance verified in their parents, that they will pass the evening of life in rest and contentment, with every little want provided for. The spectacle itself is one of the most agreeable which can strike the eye of the stranger; it is peculiarly grateful to the feelings of the negro; and most forcibly illustrates the happy state of things when benefits are made to flow from the master alone. Compulsory manumission severs the link which makes this obligation mutual, for it gives to the master all the expense, and deprives him of the benefit.

On most West India plantations not more than one-third part of each gang can be considered as efficient for field-cultivation, there being included the old and infirm, the infant and the helpless, all of whom are unserviceable, but whom the proprietor is bound by every consideration to support.

The young and able, those in the prime of life, and under the strongest influence of the passions, to whom all the allurements of idleness present

themselves in full force, would lose no time in availing themselves of any opportunity to go at large.

On the contrary, the old slaves on a plantation, in whom the ardent passions have subsided, knowing that they must soon come to be exempt from work, and entitled to that maintenance gratuitously from their master, which in a state of freedom they would have to earn for themselves, would make no attempt to procure their own liberation, but would devote their earnings, and any accumulation of money they may have already made, to the ransom of their children.

This double operation, therefore, of the young and efficient freeing themselves, or being freed by their aged connexions; and the superannuated and infirm remaining to be supported by the proprietor, would leave the burdens of a plantation undiminished, while its ability to bear them was nearly annihilated.

With regard to the other portion, from whom no labour is obtained, namely, the infants, the proprietor is induced at present to treat them with the utmost care, were it only for their future value. But the prospect of obtaining their future services might soon be changed.

Slavery, considered as an hereditary condition, is perpetuated on the side of the mother only; if means were taken to purchase all the female children, no calculation regarding relative value could be made, and the property of each proprietor must become extinct with the lives of his present negroes.

Now it is fair to apprehend, that the means of obtaining manumission might be improperly employed, for the purpose of exterminating slavery, regardless of all injury to the capitalist. Whether those means would be supplied from a fund raised in this country by speculative theorists hostile to the colonies, or, whether the slaves themselves would be, by such persons, instigated to purchase the female children, the result would be equally injurious to the proprietor.

Section 4.

CONTRARY TO THE LAW OF MORTGAGE.

Few persons require to be told, that the proportion of property under mortgage in the West Indies is considerable. It is singular, that, in the various discussions to which the Colonial Question has given rise, so little attention has been directed to the interests thus involved. Independently of the mortgagees themselves, it is the direct advantage of the planters to have every facility open for the raising of loans to meet temporary difficulties.

The act of Parliament, the 13 Geo. III. c. 14, invites loans from aliens, on the security of leasehold or freehold estates, in His Majesty's West Indian Colonies. The 14 Geo. III. c. 79 legalizes the taking of interest by British subjects, for sums advanced on mortgage, and securities of any lands, tenements, hereditaments, slaves, and other things, at the rate allowed by the law of the colony where the mortgaged property lies. And the 3 Geo. IV. c. 47, further regulates the rate of interest, and extends its provisions to persons advancing capital in this country.

On the faith of these enactments, large investments on mortgage have been made. Slaves are recognised in them, as property in fee-simple, absolute, which has been confirmed by decisions in our courts, both of law and equity. Consequently, all mortgagees rest their security not on Colonial enactments, but on British Acts of Parliament; and the law relating to mortgaged property in the colonies must be analogous to the law relating to mortgaged property in England.

By the law of England, when woods or messuages are included in a mortgage, none of those woods or messuages can be sold or alienated, either collectively or in part, by the mortgagor, or by any other known authority, even though the proceeds of such sale should be appropriated to the benefit of the mortgagee, without the express consent and concurrence of the latter; the law giving to him the sole privilege of determining as to whatever may affect his security.

By the same law of England, when slaves are expressly specified in a mortgage on West India property, neither the proprietor, nor any other known authority, can legally sell such slaves, even though the proceeds be applied in liquidation of the mortgage, unless it be with the previous consent of the mortgagee.

Yet it does not appear, that Earl Bathurst has explicitly provided for the claims of the mortgagee, who has lent his money in the firm reliance that

the law has guaranteed, both to himself and to the mortgagor, the full effects of the stipulation of the mortgage contract.

But if the slaves, being in law real property, on which the mortgagee holds a lien, be permitted at their will to separate themselves from the plantation, it must weaken the security of the mortgagee, by removing the instruments through which the fixed capital was rendered productive, and by the employment of which for the benefit of the mortgagor, there was a reasonable confidence that the mortgage might ultimately be redeemed.

And in regard to the purchase-money paid by the slave to his owner, as the price of his liberation, if the amount go at once into the hands of the mortgagee, it is an injustice to the debtor, because he had a right to expect a rate of profit from his cultivation, much higher than the mere interest paid for his loan; and it is illegal, because it is beyond the terms of his contract with the mortgagee.

If, again, the money be deposited in some public chest, it is illegal and unjust to both parties: unjust, because the removal of an efficient hand entered not into the calculations of the owner of the plantation, and by the decrease of its produce from subtracted labour, he finds his debt not diminishing but growing larger, while the mortgagee runs the risk of losing his money;—illegal, because the stipulation forms no part of the mortgage contract.

When we show that illegality is added to injustice, we may close the case on the part of the proprietor.

Let us sum up the objections.

If not one man is freed, compulsory manumission changes his good slaves into bad ones. If any are freed, he gets inadequate remuneration for their loss. It unjustly makes the burdens on his estates perpetual; and in case of mortgages, is contrary to the statute-law of the realm.

Is compulsory manumission then compatible with a fair and equitable consideration of the rights of private property? Will any member of the legislature be willing to confirm an act of the executive, which is expressly contrary to the Resolution to which Parliament became pledged in 1823?

CHAPTER IV.

INJURY TO THE WELL-BEING OF THE SLAVES.

It is presumed, that the great object contemplated by the British nation is to civilize the blacks living in our colonies. The crime of taking them from their own country is long past by; but it surely cannot be intended to compensate them for their former wrongs, by replunging them into barbarism. Yet it is to be feared that this is the consummation to result from compulsory manumission.

Section 1.

COUNTERACTS THE INCENTIVES TO CIVILISATION.

A free peasantry in the colonies is the desideratum sought by the framers of the measure. It is argued, that men are creatures of habit, and that if the negro, by voluntary industry, amass such a sum as will procure his ransom, the habit of working will have become firmly established, and he will continue to labour when he has obtained his freedom.

This argument has been entirely refuted by the simple question, What is the *motive* for exertion in the two cases? Before the negro became free, he had the strongest of inducements perpetually present to his mind—the attainment of freedom, or the privilege of enjoying himself uncontrolled. It was not for the money that he worked, but for that which the money would procure him. When he has, at length, attained his freedom, what motive has he to work further? Name one object, equivalent, in his estimation, to the irksomeness of labour; the one-inspiring aim is attained, the stimulus is gone.

But it is not enough for our purpose to show, that industry is eventually superseded. We can establish, that the very means held out are themselves the most efficacious in producing this pernicious result. It is said that men

are creatures of habits, and do not speedily change them. We meet our opponents on this ground.

If you demand of a man, living in a country imperfectly civilised, for what reason he works, he will answer, that he may purchase food. But put the same question to a man in a state highly civilised, and he will reply, that besides the purchase of food, he requires good clothing, lodging, and other comforts which have become *habitual* to him, and in which custom would make it disreputable in him not to indulge.

Let us apply this to the negro in the West Indies. At present his artificial wants are extremely low; and if certain habits, such as above described, have to operate hereafter upon him as incentives to exertion, is it not requisite that they should now begin to be established? Suppose a negro, by rearing stock of various descriptions, can earn a dollar per week—should he not be taught to lay out that sum in the purchase of articles, for instance, of personal decoration for himself and family, or of additional conveniences in his hut, in the display of which he will henceforth take a pride?

By such means it must be, that, in the lapse of time, he will feel that he must work longer than is merely necessary to procure him food, because he has other wants to satisfy.

But compulsory manumission directly counteracts this process. It prompts him to the most sordid self-denial. Its language to him is—"Spend not your weekly dollar, but rather hoard it with the most scrupulous rigour; improve not the condition of your family:—in a word, confine your wants to the state of the savage."

The necessary consequence will be, that when he attains to freedom, all his physical wants remain unchanged. And are these the boasted steps which have been taken to elevate the condition of the slaves? It is certainly a novel mode of establishing a free peasantry, to commence by divesting them of every stimulus to exertion.

Section 2.

DEBAUCHERY AND CRIME ENCOURAGED.

It will not have escaped the observation of the intelligent reader, that if compulsory manumission leads to self-depreciation, by directly suggesting and encouraging a suppression of dexterity and usefulness, the same end may be attained by debasing the moral character. Every species of debauchery is, in point of fact, encouraged, to constrain the proprietor to offer little impediment to the freedom of his slaves.

Good conduct frequently renders a negro more valuable even than skill, and it thus becomes a principal impediment to the attainment of his freedom. In the case of a drunken, worthless character on a plantation, the proprietor, instead of opposing his liberation, will be glad to get rid of him at a small amount, because he is continually giving trouble and setting a bad example.

If there be any truth in the maxim of moralists, that the road to vice is alluring in itself, what must be the result when men are urged upon it, by the strongest incentives which can be supposed to operate with them? The profligate slave may purchase his freedom within a year,—the virtuous has to wait for it ten years, and perhaps all his life, without success. What is this but to teach him, in the most emphatic manner, that if he were but profligate and worthless, he would find no such difficulties? Under the common operations of human nature, it is impossible, when the whole moral code is reversed—when virtue is punished and vice rewarded, that any number of men in a state like that of the negroes will continue virtuous.

We shall here be again reminded about the certificate of good character which is to be required. But if this question be to be discussed at all by men of business, it is surely time to dismiss this alleged safeguard of a certificate. It can never, as we have shown, be of the least avail in reference to skill; and as a real preventive it must equally prove nugatory in regard to moral conduct. Without intending any disrespect, it must be pronounced to savour a little of the ludicrous.

Let us suppose some measure introduced into one of the counties of England, affecting its population as vitally as compulsory manumission affects the slaves in our colonies, and what would be thought of any person who should gravely propose, that a public officer, amid other multifarious duties, should certify minutely as to the individual character of every man in the county? If we were to circumscribe his jurisdiction to a few square

miles, or even to a few streets of one town, the thing must plainly be impossible.

Dissimulation, hypocrisy, and craft, are often described as the parents of crime, and they will be inevitably resorted to, to screen the vices of the slave. His maxim will be, Let me become a vicious subject, to lower my value with my master, and let me become an adept in cunning to deceive the protector.

The higher his intellectual attainments, the easier will it be for him to practise this deception with success; and while, as has been shown in the preceding section, the beneficial attributes of future civilisation are checked, the slave is habituated to its corruptions.

None of the palliators of the measure can get over this conclusion, that if flagrant crime be not openly encouraged, it cannot be denied that it is fostered secretly. How many will be the plans laid for stealing in the dark; and for this evil there is no cure. If the delinquent be detected, it depreciates his character, and, consequently, his value; and, if undiscovered, it swells the fund which is to make him free.

Section 3.

VIRTUOUS UNION OF THE SEXES IMPEDED.

If we wish to infuse a higher sense of moral feeling among the slaves, it is indispensable to elevate their ideas in regard to the virtuous union of the sexes. There is no one of the measures of amelioration which has attracted more attention, or which is more desired by the British community.

We often hear that there is too great a temptation to immorality in this particular among the colonists. It may undoubtedly be true; but still illicit connexions are materially checked by the dread of bringing into existence an offspring whose lot by birth would be slavery.

If compulsory manumission be enforced, this salutary barrier is removed, because the freedom of any female slave could be purchased by the person desirous of cohabiting with her, and her offspring would be free. Thus, on

the parties colluding to take advantage of the new measure, the greatest mischiefs would accrue to the community.

If this practice once obtained, and were found easy of accomplishment, the female slaves would have a powerful inducement to court illicit connexion with the whites, in preference to marriage with men of their own condition. One of the chief objects of amelioration would thus be frustrated, and the offspring of these connexions become liable to be left destitute in case of the sickness, absence, or death of the father, and consequently thrown upon the casual charity of the public.

Besides the immorality thus in the first instance produced, how fruitful a source of future crime is presented!

Section 4.

TASK-WORK PREVENTED.

When we examine the measure as it will more immediately affect the domestic government of each plantation, we find objections equally forcible with those already stated.

In none of Mr. Canning's orations on the subject has he been so eloquent as when he described the effect of abolishing impending coercion, upon the feelings of the slave. He depicted in the most powerful manner the beautiful effects that would ensue when the slave performed his work with alacrity, and his condition assimilated to that of the voluntary labourer. It was here that he expatiated upon the wisdom of allowing benefits to the slave to flow from the master, since it would incite them to work without the necessity for coercion. The system of task-work would be introduced, which perhaps is the greatest practical improvement in the condition of slavery.

It is quite evident that this system can only exist with the agreement and reciprocal feeling of both parties. The slave knows well that his master can return to the old system at his will, and this reflection is the chief cause for establishing the improvement. The master knows well, that the law empowers him to keep his slaves at work till six in the evening; but he considers that, if he can elicit their spontaneous skill and assiduity, they will get through an equal quantity of work by an earlier hour, and will pursue

their labour cheerfully. He is therefore disposed to approve of task-work wherever it is practicable, both under the influence of that more humane spirit which pervades the colonies, and from the desire to save himself the trouble and expense of superintendence in the field.

Under this beneficial regulation, the negroes are found to complete their day's work by as early an hour as three or four o'clock, having then the remainder of the day at their own disposal, to earn money for themselves. The master never thinks of objecting to such earnings, which benefit his people without injuring himself. On the contrary, it is to his advantage, by increasing their contentment, the salutary operation of which we have described in a preceding section.

But let compulsory manumission be insisted on, and how differently will he then contemplate the earnings of his slaves! At present their little funds are spent in harmless amusements—in adorning their persons, and giving Christmas and other holiday entertainments, in which it is their delight to mimic the manners of the whites. But change the scene, and let them employ their earnings to procure their freedom, and what will be the master's course? He will be constrained, in self-defence to stop their means of earning. He will discontinue task-work, and keep his negroes working until six o'clock, as the law allows him.

Let us banish Utopian views from our thoughts, and consider, as practical men, is it ever to be expected—is it reasonable, that colonial proprietors would act otherwise? You drive them to it. They have vested their property on the express declaration of the law, that they are entitled to the labour of their slaves until *six o'clock*. You cannot change this hour for an earlier one, without infringing the rights of property, in a manner which could never possibly be contemplated by any legislature. There is therefore no regulation which can obviate the evil. Task-work, consisting of a multiplicity of details, cannot in its very nature be commanded or enforced by any other authority than that of the master. Its beneficial effects upon the slaves consist in the master's entering into their feelings, and giving them encouragement precisely in the degree that personal trouble in management is removed.

When property in slaves is made but a precarious interest, dependent upon the slaves themselves, it is no more than the truth to assert, that a

rigorous system of coercion, such as prevailed in the colonies some twenty years ago, would return.

If it be argued, that this involves a contradiction in reference to the *contentment*, described as being the proprietor's chief object to establish, let it be recollected that he is now in a dilemma. If he allows his slaves to accumulate earnings, they may be employed to his own *total ruin*; he has therefore to get, as speedily as possible, the utmost degree of work from his labourers that the law allows him.

Section 5.

INVIDIOUS FEELINGS EXCITED BY PROMPTING TO A GENERAL RUSH FOR FREEDOM.

Several of His Majesty's ministers, in various declarations and speeches, have alluded to the institution of slavery in ancient times; and availing themselves of the great experience thus presented for guidance and direction, have affirmed that the same measures of amelioration should be introduced to mitigate slavery in the West India colonies, which had in times past mitigated slavery in Europe. By obvious analogy, if the experience of times past be the true guide in measures relating to amelioration, the same experience should be the guide for measures relating to emancipation.

Let us examine, then, if this be the case.

In all ages and records of history, and in every nation on the globe in which slavery has existed, the difficulties of manumission have become less and less as civilisation advanced. But by the mode of operation laid down by Lord Bathurst, the difficulties in the present case must gradually increase. In a gang of one hundred negroes, the first man applying for freedom would have his relative utility to the plantation estimated at a small sum, the loss of the services of an individual not materially impeding its cultivation. But if thirty or forty men were to be abstracted from the estate, the sum to be assessed as relative utility must rise in a rapidly increased ratio, the remaining hands being wholly incompetent to render the fixed capital productive.

Supposing, then, the measure to possess an executory principle: in the first year, according to its projectors, a man might procure his freedom at 100*l.* At the end of the second year, a man of precisely the same capabilities and abstract value would find the price of manumission risen to 150*l.* At the end of the third year it might rise to 200*l.*; and so on, progressively, until it mounted to 500*l.*, or a still higher sum.

This is the operation consequent on the terms employed by Earl Bathurst, and subsequently, indeed, explicitly avowed by him, to illustrate the measure.

It has been considered, and repeatedly declared by His Majesty's ministers, that a progressive amelioration in the condition of the slaves, the diffusion of moral instruction, the just appreciation of the blessings of a pure religion, and a gradual reformation in manners and opinions, should continue to exercise their salutary influence, until slavery insensibly glided into freedom.

Yet compulsory manumission proceeds in express contradiction to this principle. It teaches the slave, that the sooner he demands his freedom the easier it will be for him to succeed. It discourages the idea of delaying till the morals be improved by instruction, and it urges him to rush forward at once by the most expeditious course, by teaching him, that those only who delay incur the danger of disappointment.

The public at large have been harangued about the *gradual operation* of the measure. What will be their surprise when they understand, that the meaning of such gradual operation simply is, that the difficulties in attaining the object sought should become greater by degrees instead of less? It is, indeed, a notable specimen of legislation, to announce to the slaves,—Now that you are ignorant, you may procure your freedom for 100*l.*; but some years hence, when you have improved by instruction, you will have to pay five times as much.

Under such excitements, a measure which works on the predominant passions of men, awakening in them mutual feelings of envy and distrust, prompting each to take advantage of his fellow, and universally forestalling the fruits of civilisation, must be utterly incompatible with the well-being of the slave.

Who, therefore, can maintain, all the circumstances enumerated in the foregoing sections taken in conjunction, that compulsory manumission is in conformity with the Resolution of Parliament?

CHAPTER V.

SAFETY OF THE COLONIES ENDANGERED.

The correspondence of Mr. Canning with Mr. Galatin, lately published, evinces plainly the importance which is attached to our transatlantic possessions. It cannot be supposed that a minister of state will hold one tone to a foreign power, and a different one to ourselves.

It is on occasions of public diplomacy, when our own policy is opposed to that of the great rising republic of America, that the full swell of public opinion makes known the extent of interest felt by the British nation towards her colonies.

The love of dominion is natural to mankind, and few like to lose what they have once possessed; but, with the reflecting part of the nation, this feeling is strengthened by the consciousness that slavery itself will be promoted by the destruction of the British colonies. Foreign nations will take up what we abandon; and if we are still to consume sugar, the state of the continental markets proves to a demonstration that that consumption will be supplied by slave-labour, and not by free labour from either east or west.

Hence the safety of the colonies not only affects the dignity of His Majesty's crown, which ministers have sworn to uphold; but it combines every consideration on this question which can influence the conduct of an independent member of the legislature.

If, then, there ever was a measure which involved a dilemma, it is that of compulsory manumission. It must either be operative, or, from the restrictions with which it is fenced, it must be inoperative.

Let us view it in both ways.

Section 1.

CULTIVATION SUPERSEDED.

It is almost unnecessary to remark, that the nature of the colonial system assumes the production in the colonies of commodities possessing exchangeable value, to be transported to the mother-country for sale, and tending, in the various relations of their transport, to promote and invigorate the national commerce.

But if the negroes free themselves in the manner proposed, this commerce must cease.

The writer of the “Remarks” has made one acknowledgment which greatly abridges the necessity for argument or examination on this head. He says, that no instance has yet occurred of free negroes working steadily for hire in the field, in the British colonies; and that it is not to be expected that they will so work, until their physical wants have been augmented.

Now it has been shown, in the [first section of the preceding chapter](#), that those wants, instead of being augmented, or even established, are effectually checked by the new measure. If there could be, in the first instance, a hope that cultivation might hereafter be conducted by free labourers, it is destroyed in its bud; and precisely in the degree that the negroes are freed, will the value of the colonies decline.

Political economy is now the fashion. All who are connected with the Legislature, or who take a part in public affairs, are anxious to display their proficiency in this science. Without further comment, an appeal is made to them to pronounce, on weighing well the reasoning referred to, if profitable cultivation in the colonies will not be superseded.

What, then, would be the object of protecting those colonies? They would virtually be lost to this country, in express contradiction to the declared policy of the Legislature.

Section 2.

REBELLION INSTIGATED.

On the other hand, let us suppose compulsory manumission inoperative; that Government discover its latent difficulties, and that they wish ostensibly to enforce its enactment while they fetter it with restrictions to prevent its practical working.

Here it is conceived that still more disastrous consequences would ensue. You tell the negro that he has a right to purchase his freedom; and when he comes forward to claim it, he finds himself mocked and imposed upon.

In common reason, is this the kind of legislation we are to expect after the many warnings we have had of negro-susceptibility, and the well-grounded conviction that there are embers, only wanting one kindling breath to involve the whole colonies in destruction?

Since the agitation of negro-emancipation, within these few years past, a great excitement has prevailed among the slaves, and mischief on no common scale has occurred, merely from the delusion practised upon the negroes as to the pretended benefits intended them. During the insurrection in Demerara, when the insurgents were told by the governor, of the new laws and indulgences to be granted them, they received the boon with comparative derision; they said, to quote the words of the Governor's despatch, that "those things were no comforts for them; that they were tired of being slaves; that their good King had sent orders that they should be free, and that they would not work any more."

By obvious analogy we may judge of the danger if an inoperative law be now passed. To inspire hopes which can never be realized, is at any time bad; but in the case of the slaves, it is to render them for ever dissatisfied with their lot, and to arouse every angry passion in their minds. The strongest indignation, therefore, should be expressed at attempts made to palliate the manifold errors of the measure, or to procure the unreflecting concurrence of parties locally interested, by representing that it might ostensibly be allowed to pass, if rendered inoperative, because then no harm can result from it. Such a mode of proceeding to all parties concerned, both master and slave, would be unworthy of the British Government, and not more disingenuous than impolitic.

Imagine, for a moment, the feelings of a slave, who, relying upon the efficacy of the law promulgated, applies for his freedom, but finds all a fallacy! Think of his baffled hope—the pinings of the heart—the burning

sense of injustice! And it is all-important to reflect, that the obnoxious object of these excited passions will be the master, or the resident proprietor. The negro will never believe that he has been deceived by the King of England. He will decide, that the King has conferred on him the boon, and that it has been intercepted by combination of the colonial proprietors.

The negroes are just beginning to be sensible that amelioration is different from what they first imagined it. Proclamations and proceedings of the governors have tended to check their fatal impression that a life of idleness was now at hand; but if you disturb the existing tranquillity, if you again raise the delusive cry of "Freedom!" may we not apprehend that kindred spirits, brooding over their fancied wrongs, will coalesce, and discontent thus swell into rebellion. It is vain to disguise or cloak the measure. Every colonial proprietor knows the excitement that will always be kept up by the anti-colonial party. "If I am to be robbed," he will say, "rather let me suffer at once, than be kept in perpetual dread of ruin. If a slave worth 300*l.* comes to demand his freedom, better suffer a loss of 100*l.* than send him back with a refusal, for assuredly he will never be a peaceable or good subject again." In his own defence, therefore, he must refuse to sanction any modifications of a measure which will equally injure himself, and endanger the public safety.

Whether, then, compulsory manumission contain an executory principle, or otherwise, it is incompatible with the safety of the colonies.

We have now contemplated the measure in every point of view, and it must be emphatically pronounced to be contrary both to the letter and the spirit of the Resolutions of both houses of Parliament.

CHAPTER VI.

NO JUST ANALOGY IN THE PRECEDENTS ADDUCED BY GOVERNMENT.

A thousand precedents would never justify a bad measure—it may therefore be deemed superfluous to offer a remark on this head; but as Mr. Canning has argued, that whatever is adopted in one colony can safely be introduced into all the rest, and as this maxim has been taken for granted by many persons willing to save themselves the trouble of thinking, it is necessary to enter into some explanation.

Section 1.

TRINIDAD.

When the order in council for negro treatment was sent out to Trinidad, great objections were offered, both generally, and to the individual clauses which constitute compulsory manumission.

It is not necessary here to inquire how often that order has been altered, or the reasons why the colonists of Trinidad have been constrained to submit to the authority imposed upon them. We have only to show that the case of that island differs from that of the other British colonies.

Trinidad was originally a Spanish colony; its laws were framed previously to the abolition of the slave-trade, and have continued unaltered since the cession of the island to Great Britain.

Now it is apparent that, when fresh slaves can be procured, compulsory manumission is not so objectionable; because the place of those who purchase their freedom can be immediately filled up by others.

It has consequently been considered that, while the slave-trade was in active operation in the Spanish colonies, the practice of manumission was

encouraged, as increasing the means of preventing insurrection.

But it is surely unfair to hold up to the imitation of another colony the enactments and usages introduced by one whose laws were adapted to a state of things so different; and to require that the provisions of a code adapted to the existence of the slave-trade, should be engrafted upon other codes framed since its abolition.

The order in council for Trinidad has not affected the principle of the Spanish law, or rather the practice in the Spanish colonies, which allows a slave to enfranchise himself by purchase. But the British law in our settlements gives no such right whatever to a slave.

According to those codes, the interest of an owner in his slave is that of a fee-simple absolute: he purchased upon that tenure, he has continued to hold upon the same, and cannot be deprived of that legal title without a direct violation of property.

In Trinidad it is otherwise: a person purchasing a slave in that colony, knows beforehand that he acquires only a precarious title in such a slave, which depends on the ability of the slave to purchase himself.

Nor has sufficient time yet elapsed to make known the great difference in the working of the measure that must take place now that the slave-trade has ceased, contrasted with the period when it was in active prosecution.

It ought also to be stated, that the hardship and evils of the law in Trinidad, even subsequent to the abolition of the slave-trade, had not been so much felt, from the nature of its laws not being generally known in this country: consequently, there was no extraneous excitement upon the subject given to the minds of the negroes.

But now, when this excitement has been given, the brief experience already afforded, tends strongly to corroborate the arguments we have advanced; and it is credibly asserted, that the Secretary for the Colonies has received representations and appeals, proving evils to have proceeded from the operation of this law.

Among these evils, theft is shown to have increased; and the proceedings before the local magistrates are said to evince a progressive demoralization amongst the negroes.

It is further known, that instances have occurred where the sum assessed by the appraisers, as the price of manumission, has been higher than the negro was able, or considered himself entitled, to pay; and the being sent back under these circumstances has visibly produced in him a sullenness and discontent exactly as has been described, and in all probability as injurious to the interests of his master, as if he had obtained his discharge at his own valuation.

From these circumstances, it is apparent that there is no analogy between the case of Trinidad and that of the other British Colonies, and that thus far no proper precedent is established.

Section 2.

ST. LUCIE.

In regard to this colony, the measure has been but recently introduced, and without the spontaneous concurrence of its inhabitants. It was established there by the force of arbitrary authority. There was no adequate court or power, similar in constitution and functions to the Assemblies in the other islands, to resist its promulgation; and the threat conveyed in the despatch of Earl Bathurst to the Governor, thus amounted to an imperative mandate for the adoption of the measure as law in the colony.

Is this a precedent?

Section 3.

BERBICE.

The case of Berbice is still more flagrant. This colony possessed, a short time back, a council composed of persons having property at stake. Before the enactments relating to the slaves in that colony were brought forward, this council was dismissed, and another arbitrarily appointed, consisting of persons having no interest in the cultivation of the colony.

It was previously declared, that the new laws relating to the slaves, in whatever way they might be finally settled, should not be carried into

operation at Berbice, unless the same measures were at the same time adopted in Demerara. In the latter colony, all the measures relating to amelioration were received, and compulsory manumission alone rejected; but in Berbice, the new council, so appointed and so composed, passed the latter measure contrary to the wish of every proprietor in the colony.

It ought moreover to be stated that, before the new laws were promulgated in Demerara, they were sent home to Lord Bathurst for confirmation, upon which his Lordship observes,—“The King has been graciously pleased to approve the decision that you adopted, of referring the draft of the Act to his Majesty, for his consideration, instead of immediately promulgating it as a law in the colony.”

But how does the new Council of Berbice act? The most important of all the new measures they carry at once into effect; that is to say, they allow no opportunity for parties in England to carry remonstrance or explanation to the foot of the throne.

Again, let us ask, is this a precedent? What is the meaning of the term? does it not warrant the inference, in this case, that some assembly, composed of parties interested, have given their concurrence? But how marked is the difference between a council composed of persons possessing little or no property in slaves, and a court where several of the members hold large plantations, and are deeply interested in the permanent prosperity of their colony.

The possession of this large stake by the members, and the circumstance of having delegated interests to represent, peculiarly conduce to safe and practicable legislation. Such circumstances present a security against precipitancy,—prompt to a careful and minute consideration of all local peculiarities,—and procure for every public measure a full and patient examination of all its relations, both direct and contingent, before it is permitted to be put in execution.

And further, in respect to any one of these West India cases, has there elapsed a time sufficient to enable us to estimate the policy of the experiment, and still less to pronounce upon its fitness for the whole of our West Indian possessions?

Section 4.

CAPE OF GOOD HOPE.

How this colony should be referred to as a precedent it is difficult to explain. Its climate differs materially from that of the West Indies. In the latter, the evils apprehended from giving freedom to the slaves arise from the impossibility of procuring free labourers to supply their place. It is but a very short time since emigration from this country to the Cape of Good Hope was greatly encouraged; and it is ascertained, by experience, that Europeans can work without injury or inconvenience in that climate.

Thus the supply of voluntary labourers not only existing, but increasing in that colony, the inducements to perpetuate slavery must progressively expire, and slaves may consequently be freed without injury to the property of their owners, or danger to the public safety.

From this obvious difference in physical circumstances between the West India colonies and the Cape of Good Hope, there is no just analogy between the two; and though compulsory manumission may be enacted in the one, it cannot, therefore, be taken as a model for imitation to the other.

This straining after inapplicable precedent clearly indicates deficiency of argument.

No enactment containing inherently a principle of evil, even though acceded to willingly, or acquiesced in passively, by individual bodies, should ever be set up by a wise government as an example for general adoption.

It has been more than once remarked in Parliament, by persons of high character, that the precedent generally existing throughout the Spanish colonies served as a sufficient ground for the measure.

But there are two points which should never be omitted in reflecting on the question:

I. As to the opportunity of procuring other labourers.

II. The difference of amount sunk in fixed capital, between the Spanish colonies and those of Great Britain.

In regard to the first, fresh labourers can be procured in the Spanish colonies, but cannot in the British; and in regard to the second, there must surely be some difference in the working of a measure when the amount of capital to be withdrawn varies in the proportion of 20,000*l.* in the one case, to a few hundreds in the other.

CHAPTER VII.

RESPONSIBILITY ATTACHING TO MINISTERS IF THEY ENFORCE COMPULSORY MANUMISSION.

Whoever notices the levity of manner with which this question is treated, would imagine that our constitution had undergone a change, and that His Majesty's advisers were relieved from responsibility for the acts of the executive. On any occasion it is a rash step to counsel the crown to important measures before a full investigation has been instituted. But when a step is taken so contrary to the laws of the realm, as, by eminent law-authorities, Compulsory Manumission, in regard to mortgaged property, is conceived to be, *responsibility* ceases to be an idle term, and circumstances may arise from it to disturb the peace of a minister of state much longer than he anticipates.

It can never be too often repeated that, so far as legislation for the negroes is concerned, what is once done is irrevocable. In other public measures, an opportunity is afforded to a minister, when he makes a false step, to change his policy by a dexterous manœuvre. But no such resource being afforded in the West India Question, we should conclude that more cautious deliberation would in the first instance be exercised, and that a *full examination* would take place before excitement was created by announcing even the heads of a new measure. The proceedings hitherto have been on a principle directly opposite. While the Irish Question remains undecided, though more than a generation has passed by since it commenced; and while the Corn Question has stood over until argument on the subject is exhausted: In the West India Question—where, wrong measures being once taken, all remedy is hopeless—the parties whose whole property is at stake cannot be allowed more than the lapse of a few weeks, to put on record all their objections to the most essential innovations.

This presents an anomaly in the history of public measures, and it can only be accounted for by supposing that ministers, amid their many duties,

have completely undervalued the importance of the measure now pending. This conclusion is confirmed by what is understood to be their language to independent members of the legislature whose suffrage they solicit in future discussion. They say the principal opposition of the West Indians is no more than idle and transient clamour. It is merely of a piece with what has been always witnessed. When the abolition of the slave-trade was under discussion, did we not hear the cry, that our ancient colonies would be ruined? That great measure was carried, yet no ruin ensued. When the Registry Bill was brought in, had we not a similar clamour, that the most dangerous excitement among the slaves would be the consequence? That point, too, was carried; yet no such direful evils attended it. Again, when the recent Amelioration Clauses were proposed, how furious was the opposition in the colonies,—the proprietors there were to be utterly ruined. Many of these clauses have since been enacted, even where opposition was strongest at the first, and yet no injury or change has taken place! What is the inference in regard to compulsory manumission? We have strenuous opposition at present, it is true; but when the measure is once carried, that will soon subside, and all the frightful features of danger which have alarmed the colonists will turn out to be mere phantoms of the imagination.

Now, in answer, may we not allege, in the first place, that the objections urged against those former measures were not groundless. Our abolition of the slave-trade, without securing the effectual concurrence of foreign powers in a similar act, has transferred from British to foreign colonies the principal supply of Europe with sugar, and without the smallest benefit to Africa. The Registry Bills are an enormous tax on our impoverished colonies, and it is not to them we owe the extinction of our colonial slave-trade. Of our recent Amelioration Clauses, the effect in diminishing production is as yet more certain than that of increased benefit to the negro-population.

In the second place, may we not pronounce that the case we are now submitting is very different from any of those cited?

But in this age of superficiality, where all laborious investigation seems exploded, and when a well-turned period of declamation in Parliament sways the nation, let us take another mode of pointing out the difference of this case.

In those important measures which were passed some time back, the Government carried a great number of colonial proprietors living in this country along with them. How different, then, on *primâ facie* evidence, must be the nature and bearings of the measure now proposed, when colonial proprietors, who have always acted with ministers, are constrained, as a solemn duty in defence of their properties and of their families, to oppose it strenuously! It is evident, that to occasion such a feeling, there must be something in the measure alarmingly important, and demanding the most cautious scrutiny.

In former times, the letters sent out by colonial proprietors in England to their friends in the colonies impressed upon the latter, to do all that they were able, to silence clamour in England; but with regard to compulsory manumission, the lesser evil is chosen, and the admonition is, “Beware of passing this measure, and thus committing yourselves by your own act. *Throw all the responsibility upon ministers, that you may hereafter have full claims for indemnification.*”

The question then resolves itself into this,—Are ministers, considering the situation in which they are placed, and having a due regard to their own fame, prepared to take this responsibility upon themselves? Do they rely upon the passing opinions of the day for their support? Lord Bathurst says, in his despatches, that the colonial legislature “may be assured, that from the final accomplishment of this object this country will not be diverted.”

Now it may be true that, with the unthinking populace, the extinction of slavery is desired; but what practical statesman would take this vague expression of feeling for his guide? It may safely be affirmed, that the intelligent portion of the community are aware of the difficulties, and expect from Government, not what is theoretically to be desired, but what is practically and wisely attainable. They are not prepared to lose our West India colonies, which are believed to contribute largely to the prosperity and strength of the kingdom; nor are they at all disposed to inflict injustice upon their fellow-subjects, knowing well, that whatever odium may now attach to the colonial proprietor, the charge of having countenanced slavery is one which he shares with the whole British nation.

But it ought further to be known, and well reflected on by His Majesty’s ministers, that humane and enlightened individuals, not anxious for the

political so much as the moral grandeur of the country, who waive every notion of expediency, and consider the cause of humanity as paramount, are beginning to entertain doubts as to the wisdom of the proceedings of Government.

This is not vague opinion, but is founded on weighty reasons.

FIRST: That it is the object of British humanity to exalt the entire African race, and to accomplish it as a matter of genuine philanthropy in the most general and efficient manner.

It appears by parliamentary documents, that as cultivation, during some years past, has decreased in the British colonies, precisely in the same degree has the slave-trade of foreigners increased.

To ruin or deteriorate the British colonies is thus to encourage the horrors of the slave-trade, and to increase the sum of African suffering.

Therefore, it being the object of the British nation to abridge that suffering, and not to make a mere display of sensibility, if the proposed measures can be proved to be destructive of cultivation in the British colonies, their spirit must be pronounced to be contrary to the sentiments of the country.

And, SECONDLY: That having long since committed the crime of transporting the negroes to our West India colonies, it is expected by the British nation, that the welfare of future generations will be contemplated; and that, hereafter, a black society may be witnessed, possessing in itself the attributes, moral, intellectual, and political, of a civilized people.

So strongly does this sentiment pervade the nation, that it is common to hear the inquiry—"What are the negroes to do when free?" implying the belief that rash interference may have proceeded far to accomplish the object, but that judicious legislation has stopped short on the threshold.

If we were to make an appeal to Lord Bathurst, and to all who have taken an active part in the promotion of compulsory manumission, must they not acknowledge, that since the agitation of the subject in 1823, a considerable and perceptible change has taken place in public opinion, in consequence of the inquiry relative to free labour; and that the idea of having a free negro-peasantry labouring under a tropical climate for hire is impracticable and hopeless.

Does not, then, the whole question depend on free labour?

We cannot but infer, that when the relations and consequences of granting freedom to the negroes by compulsion are fully understood in all their widely-spreading effects, the opinion of the country will be as strongly expressed in reprobation, as Earl Bathurst pronounces it at present to be in approbation of the speedy adoption of the measure.

Without any disrespect it may be stated, that some of our ministers, who are upborne by the current of public applause, have had sufficient experience of the fickleness of popularity. Let us recall to mind the wise precept of Mr. Canning in 1819—"Speak not the *will* of the populace, but consult their *benefit*."

We appeal to each member of parliament to further this counsel. The question of negro-*emancipation* is virtually before them. It is conceived, by all those whose properties are at stake, to be presented in its most objectionable form, and they unanimously oppose it. Before deciding on the subject, let every member reflect on the sentiments of two of our greatest statesmen.

Mr. Pitt, in every discussion in which negro-emancipation was agitated, pronounced, that it was an act which must "flow from the master alone."

When that presiding genius of the country's commercial greatness was no more—when Mr. Fox had coalesced with Lord Grenville,—and above all, when the whole anti-colonial party, with Mr. Wilberforce at its head, had joined his ranks, Mr. Fox, in the full tide of his popularity and his power, declared—

"That the idea of an act of parliament to emancipate the slaves in the West Indies, *without the consent and concurrent feeling of all parties concerned*, BOTH IN THIS COUNTRY AND IN THAT, would not only be mischievous in its consequences, but totally extravagant in its conception, as well as impracticable in its execution."

THE END.

LONDON:
PRINTED BY W. CLOWES,
Stamford-street.

TRANSCRIBER'S NOTE

Obvious typographical and punctuation errors have been corrected after careful comparison with other occurrences within the text and consultation of external sources.

Some hyphens in words have been silently removed (e.g., "West India" and "West Indian") and added (e.g., "sugar-plantation" and "sugar-estate"), when a predominant preference was found in the original book.

Except for those changes noted below, all misspellings and inconsistent or archaic usage in the text have been retained.

[Page 3](#): "particular acts ema nate" replaced by "particular acts emanate"

[Page 63](#): "announce to theslaves" replaced by "announce to the slaves"

*** END OF THE PROJECT GUTENBERG EBOOK COMPULSORY
MANUMISSION ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.